STATE OF WASHINGTON
OFFICE OF GOVERNOR JAY INSLEE

PROCLAMATION BY THE GOVERNOR
AMENDING PROCLAMATIONS 20-05 and 20-25, et seq.

20-25.14

"WASHINGTON READY"

WHEREAS, on February 29, 2020, I issued Proclamation 20-05, proclaiming a State of Emergency for all counties throughout the state of Washington as a result of the coronavirus disease 2019 (COVID-19) outbreak in the United States and confirmed person-to-person spread of COVID-19 in Washington State; and

WHEREAS, as a result of the continued worldwide spread of COVID-19, its persistence in Washington State, and the high risk it continues to pose to our most vulnerable populations, I have subsequently issued amendatory proclamations, exercising my emergency powers under RCW 43.06.220, that prohibit certain activities and waive and suspend specified laws and regulations; and

WHEREAS, I issued Proclamations 20-25, et seq., first entitled "Stay Home – Stay Healthy," in which I prohibited people in Washington State from leaving their homes except under certain circumstances, which I later amended to "Safe Start – Stay Healthy – County-By-County Phased Reopening," then to "Stay Safe – Stay Healthy – Rollback of County-By-County Phased Reopening Responding to a COVID-19 Outbreak Surge," and then to "Healthy Washington – Roadmap to Recovery," in response to the changing COVID-19 epidemiological and health system conditions in Washington State; and

WHEREAS, on July 2, 2020, due to the COVID-19 infection rates which were increasing across the state, I ordered a freeze on all counties moving forward to a subsequent phase of reopening and on July 24, 2020, the Secretary of Health issued *Order of the Secretary of Health 20-03.1*, which, among other things, required (with exceptions) the use of face coverings throughout the state; and

WHEREAS, over the past 16 months, health experts and epidemiological modeling experts, including those at the Department of Health, the United States Centers for Disease Control and Prevention (CDC), and our state universities, have gained critical knowledge regarding the spread of COVID-19, including a better understanding of the risks associated with certain activities and the measures that can be taken to reduce those risks; and

WHEREAS, we now know that several factors increase the risk for person-to-person COVID-19 transmission; such factors include (1) the more that people and groups interact, (2) the longer those interactions last, (3) the closer the contact between individuals, and (4) the denser the occupancy for indoor facilities; and

WHEREAS, the worldwide COVID-19 pandemic and its persistence in Washington State continue to threaten the life and health of our people as well as the economy of Washington State, and remain a public disaster affecting life, health, property or the public peace; and

WHEREAS, although the COVID-19 disease continues as an ongoing and present threat in Washington State, the measures we have taken together as Washingtonians over the past 16 months, including the willingness of Washingtonians to take advantage of the remarkable, life-saving vaccines being administered throughout the state, have made a difference and have altered the course of the pandemic in fundamental ways; and

WHEREAS, although Department of Health statistics reflect the continued persistence of COVID-19 and support the continuation of the state of emergency, health experts and epidemiological modeling experts believe that as a state we have made adequate progress against COVID-19 to begin modifying the roadmap to recovery (*Healthy Washington – Roadmap To Recovery*) to move towards the goal of safely easing some restrictions while also maintaining crucial hospital capacity, ensuring care for Washingtonians who need it, paving the way for economic recovery, and maintaining flexibility to quickly pivot to increase restrictions if needed; and

WHEREAS, as of June 30, 2021, at least 67 percent of people 16 years of age and older and 55 percent of the total population have initiated vaccination, and at least 60 percent of people 16 year of age and older and 50 percent of the total population are fully vaccinated; and

WHEREAS, data reflect that the number and percent of vaccinated Washington residents continue to increase, while the number of new COVID-19 cases, hospitalizations, and deaths are decreasing; and

WHEREAS, as of June 30, 2021, notwithstanding the progress made in increasing the vaccination rate among persons eligible to vaccinated, we continue to have new COVID-19 cases on a daily basis and new COVID-19 deaths on nearly a daily basis; and

WHEREAS, on May 13, 2021, the CDC announced that fully vaccinated individuals are not recommended to wear masks inside or outside, except when in health care settings, correctional facilities, homeless shelters, schools, and public transportation, and Washington State's data support adopting the CDC's position at this time; and

WHEREAS, the data supported moving all counties to Phase 3 on May 18, 2021, and, supported fully reopening most sectors in the state by June 30, 2021; and

WHEREAS, the Washington State Department of Health continues to maintain a Public Health Incident Management Team in coordination with the State Emergency Operations Center and other supporting state agencies to manage the public health aspects of the incident; and

WHEREAS, the Washington State Military Department Emergency Management Division, through the State Emergency Operations Center, continues coordinating resources across state government to support the Department of Health and local health officials in alleviating the impacts to people, property, and infrastructure, and continues coordinating with the state Department of Health in assessing the impacts and long-term effects of the incident on Washington State and its people; and

NOW, THEREFORE, I, Jay Inslee, Governor of the state of Washington, as a result of the above noted situation, and under Chapters 38.08, 38.52 and 43.06 RCW, do hereby proclaim and order that a State of Emergency continues to exist in all counties of Washington State, that Proclamation 20-05, as amended, remains in effect, and that, to help preserve and maintain life, health, property or the public peace pursuant to RCW 43.06.220(1)(h), Proclamation 20-25, et seq., *Healthy Washington – Roadmap To Recovery*, renamed *Washington Ready* pursuant to this order, found here, remains in full force and effect, and all of the prohibitions described therein are extended except as they are specifically altered or amended by this Proclamation.

FURTHERMORE, for purposes of the prohibitions contained in the *Healthy Washington – Roadmap To Recovery*, every county began in Phase 1 as of January 11, 2021. Most counties were able to move to the less restrictive Phases 2 and 3 as determined by the *Roadmap to Recovery*. Now, given the reduced level of COVID-19 activity in the state and the significant, and increasing, number of vaccinated individuals in our state, I hereby order that movement, occupancy, and face-covering restrictions are modified as set forth in this Proclamation 20-25.14, *Washington Ready*. If statewide COVID-19 infections or related deaths begin to rise again and reach a statewide hospital Intensive Care Unit capacity of 90% or greater, restrictions may again be reinstated for the protection of everyone in the state.

ADDITIONALLY, in furtherance of these prohibitions, and for general awareness:

1. The face covering requirements for workers, employers, businesses, customers, the general public, and any other entities or individuals in prior versions of Proclamation 20-25 are hereby rescinded and replaced with the face covering requirements imposed in and pursuant to this version of Proclamation 20-25.
2. The Secretary of Health's face covering order and any subsequent amendments are incorporated by reference.
3. Employers must comply with all conditions for operation required by the Washington State Department of Labor & Industries, including interpretive guidance, regulations and rules and Department of Labor & Industries-administered statutes.
4. Everyone is required to cooperate with public health authorities in the investigation of cases, suspected cases, outbreaks, and suspected outbreaks of COVID-19 and with the implementation of infection control measures pursuant to State Board of Health rule in WAC 246-101-425.
5. All mandatory guidelines for specific businesses and activities, which remain in effect except as modified by this Proclamation, may be found at the Governor's Office website, *COVID-19 Resources and Information*, and at *COVID-19 Reopening Guidance for Businesses and Workers*. Existing guidelines that require proof of vaccination for certain settings and activities remain in effect until such time as those guidelines are expressly modified.

FURTHERMORE, in support of this proclamation:

6. General rule: General face covering requirements are found in the Secretary of Health's face covering order, and any subsequent amendments, as incorporated herein by reference.

7. Additional local restrictions may apply: Nothing in this proclamation or in the Secretary of Health's face covering order prevents any other individual or entity from imposing face covering or other restrictions or requirements in businesses or other locations within the scope of their legal authority. In addition, local authorities and landlords are prohibited from preventing or prohibiting businesses in their jurisdictions and tenants in their properties, respectively, from imposing face covering requirements or requiring proof of vaccination from customers, and are further prohibited

from penalizing a business or tenant in any manner if it chooses to require face coverings or proof of vaccination.

8. Customers: In support of the Secretary of Health's face covering order, businesses may choose to implement an honor system and assume that all customers who are not wearing face coverings while indoors are fully vaccinated. However, a business may also choose to engage with customers to determine if they are fully vaccinated or are otherwise exempt from the indoor face covering requirement and may also ask customers for proof of vaccination.

9. Employees: Unless additional restrictions are imposed by the employer or a state or local authority or face coverings are legally required at the specific worksite regardless of vaccination status, a fully vaccinated employee may work indoors at the employee's worksite without wearing a face covering, but only *after* the employee has either provided (a) proof of vaccination to the employer; or (b) a signed document attesting to the employee's fully vaccinated status. The option to provide a signed self-attestation may be done in hard copy or electronically.

10. Employers: Employers are required to provide a safe and healthy workplace and must assess hazards in their workplace and take appropriate steps to protect workers. COVID-19 remains a recognized hazard that continues to pose a significant risk to the health and life of employees. Employers therefore must assess the hazard COVID-19 poses to their workplace and take appropriate steps to protect workers, including workers who are not fully vaccinated. To that end, employers:
    a. Must obtain proof of vaccination or a hard copy or electronically signed document attesting to the employee's fully vaccinated status from every employee before the employee is permitted to work at an indoor worksite without wearing a face covering, and must follow applicable rules for those jobs and worksites that continue to require face coverings;
    b. Notwithstanding (a) above, may require that employees wear a face covering while at the worksite regardless of vaccination status; and
    c. May require vaccination as a condition of employment, except as prohibited by state or federal law.

ADDITIONALLY, in addition to guidance issued by the Department of Health and the Department of Labor & Industries, additional guidance for businesses, employees, and customers may be found here and is incorporated by reference, and such guidance may be updated periodically and all such updates are also incorporated by reference.

I again direct that the plans and procedures of the *Washington State Comprehensive Emergency Management Plan* be implemented throughout state government. State agencies and departments are directed to continue utilizing state resources and doing everything reasonably possible to support implementation of the *Washington State Comprehensive Emergency Management Plan* and to assist affected political subdivisions in an effort to respond to and recover from the COVID-19 pandemic.

I continue to order into active state service the organized militia of Washington State to include the National Guard and the State Guard, or such part thereof as may be necessary in the opinion of The Adjutant General to address the circumstances described above, to perform such duties as directed by competent authority of the Washington State Military Department in addressing the outbreak.

Additionally, I continue to direct the Department of Health, the Washington State Military Department Emergency Management Division, and other agencies to identify and provide appropriate personnel for conducting necessary and ongoing incident related assessments.

Violators of this order may be subject to criminal penalties pursuant to RCW 43.06.220(5). Further, if people fail to comply with the required facial coverings, social distancing and other protective measures while engaging in this phased reopening, I may be forced to reinstate the prohibitions established in earlier proclamations.

This order is effective immediately. Unless extended or amended, or termination of this amendatory proclamation, the provisions of Proclamation 20-25, et seq., will continue to be in effect until the state of emergency, issued on February 29, 2020, pursuant to Proclamation 20-05, is rescinded.

Signed and sealed with the official seal of the state of Washington on this 1st day of July, A.D., Two Thousand and Twenty-One at Olympia, Washington.

By:

/s/
Jay Inslee, Governor

BY THE GOVERNOR:

/s/
Secretary of State